

Disaster Risk Reduction and Management Act, 2017

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Chapter - 1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Disaster Risk Reduction and Management Act, 2074."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chief Executive" means the Chief Executive of the Authority.

(b) "Executive Committee" means the Executive Committee constituted pursuant to Section 6.

(c) "Fund" means the Disaster Management Fund pursuant to Section 22.

(d) "Non-natural Disaster" means a disaster arising from epidemics, famine, fire, insect or micro-organism terror, flu in animals and birds, pandemic flu, snakebite, animal terror, mining, air, road, water or industrial accidents, fire, toxic gas, chemical or radiation leakage, gas explosion, consumption of toxic food, environmental pollution, deforestation or damage to physical structures, accidents during disaster rescue operations, or any other non-natural disaster of a similar nature.

(e) "District Disaster Risk Reduction and Management Committee" means the District Disaster Risk Reduction and Management Committee constituted pursuant to Section 16.

(f) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules framed under this Act.

(g) "Council" means the National Council for Disaster Risk Reduction and Management constituted pursuant to Section 3.

(ja) Amended by Some Nepal Acts Amendment Act, 2075. "Province Disaster Management Executive Committee" means the Province Disaster Management Executive Committee constituted pursuant to Section 14. Amended by Some Nepal Acts Amendment Act, 2075.

(jha) "Natural Disaster" means any disaster arising from snowfall, hail, avalanche, glacial lake outburst flood, excessive rainfall, drought, flood, landslide and landslip, inundation, draught, storm, gale wind, cold wave, heat wave, lightning, earthquake, volcanic eruption, wildfire, or any other natural disaster of a similar nature.

(nya) "Authority" means the National Disaster Risk Reduction and Management Authority constituted pursuant to Section 10.

(ta) "Ministry" means the Ministry of Home Affairs of the Government of Nepal.

(tha) "Disaster" means a natural or non-natural disaster that creates an emergency situation in a place, causing loss of life or property, and adversely affecting livelihood and the environment.

(da) "Disaster Search and Rescue Team" means a specialized search and rescue team activated for search

and rescue during a disaster or prepared for deployment for disaster management, and also includes trained humanitarian aid workers.

(dha) "Disaster Risk Reduction" means activities related to pre-disaster risk analysis and assessment, disaster prevention or mitigation of damage caused by disaster, and reducing disaster risk in development works.

(na) "Disaster Recovery" means activities related to reconstruction and rehabilitation after a disaster event.

(ta) "Disaster Response" means activities related to immediate search, rescue and relief as soon as a disaster event occurs, and also includes pre-disaster preparedness for disaster response.

(tha) "Disaster Management" means all activities related to disaster risk reduction, disaster response and disaster recovery.

(da) "Commercial Establishment" means commercial establishments as prescribed, such as industries, factories, cinema halls, shopping malls, multi-purpose commercial buildings.

(dha) "Public Entity" means a government body, an entity wholly or partly owned by the government, an organized institution established under prevailing law, or all types of health and educational institutions.

(na) "Security Body" means the Nepali Army, Nepal Police, Armed Police Force, Nepal, National Investigation Department, and Provincial Police.

(pa) "Local Level" means a Rural Municipality, Municipality, and District Assembly.

(pha) "Local Disaster Risk Reduction and Management Committee" means the Local Disaster Risk Reduction and Management Committee constituted pursuant to Section 17.

Chapter - 2

Formation and Functions, Duties and Powers of the Council

3. Formation of the Council: (1) There shall be a National Council for Disaster Risk Reduction and Management to effectively conduct disaster management related activities.

(2) The Council shall be constituted as follows:-

- (a) Prime Minister - Chairperson
- (b) Amended by Some Nepal Acts Amendment Act, 2075. Ministers of the Government of Nepal - Members
- (c) Leader of the Opposition Party in the House of Representatives - Member
- (d) Chief Ministers of all Provinces - Members
- (e) Vice-Chairperson of the National Planning Commission - Member
- (f) Chief Secretary of the Government of Nepal - Member
- (g) Chief of Army Staff, Nepali Army - Member
- (ha) Secretary of the Ministry - Member
- (jha) Three persons nominated by the Council from among persons who have acquired expertise in the field of disaster management, including at least one woman - Members
- (nya) Chief Executive - Member-Secretary

(3) The term of office of the nominated member pursuant to clause (jha) of Sub-section (2) shall be five years.

(4) Notwithstanding anything contained in Sub-section (3), if the work of a nominated member is not satisfactory, the Council may remove him/her from the post of member at any time. Provided that before removing him/her as a member, a reasonable opportunity shall be given to him/her to submit a defense. 4. Provisions relating to Meetings of the Council: (1) A meeting of the Council shall be held at least twice a year at the date, time and place specified by the Chairperson.

(2) The Member-Secretary of the Council shall fix the date, time and place for the meeting of the Council and send a notice including the agenda for discussion to all members at least forty-eight hours before the meeting time. Provided that if it is necessary to call an immediate meeting of the Council, the Chairperson may call a meeting of the Council less than forty-eight hours in advance.

(3) If more than fifty percent of the members of the Council are present, it shall be deemed to constitute a quorum for the meeting of the Council.

(4) The meeting of the Council shall be chaired by the Chairperson of the Council.

(5) Decisions of the Council shall be made by majority vote, and in case of a tie, the Chairperson shall cast a deciding vote.

(6) The Council may invite representatives of concerned bodies or organizations and experts to the meeting as required.

(7) Other procedures relating to meetings of the Council shall be as determined by the Council itself.

(8) Decisions of the Council shall be certified and kept by the Member-Secretary of the Council. 5.

Functions, Duties and Powers of the Council: The functions, duties and powers of the Council shall be as follows:- (a) To approve national policies and plans relating to disaster management, (b) To give necessary directives to the Executive Committee and the Authority regarding policies and plans to be adopted in respect of disaster management, (c) To provide necessary policy guidance to the province and local level in disaster management related activities, (d) To give directives to the Executive Committee and the Authority regarding the management of financial resources for disaster management and to facilitate the same, (e) To evaluate disaster management related activities. Chapter - 3 Formation and Functions, Duties and Powers of the Executive Committee 6. Formation of the Executive Committee: (1) There shall be an Executive Committee for the purpose of implementing and causing to implement policies and plans approved by the Council. (2) The Executive Committee shall be constituted as follows:- (a) Home Minister of the Government of Nepal - Chairperson (b) Ministers of the Government of Nepal holding portfolio of urban development, health, federal affairs and local development - Members (c) Amended by Some Nepal Acts Amendment Act, 2075. Secretaries of the Ministries of the Government of Nepal - Members (d) Secretary of the Office of the Prime Minister and Council of Ministers, Government of Nepal - Member (e) General, Nepali Army - Member (f) Chiefs of Nepal Police, Armed Police Force, Nepal, and National Investigation Department - Members (g) Executive Director, Nepal Rastra Bank - Member (h) Chairperson, Nepal Telecommunications Authority - Member (jha) Member-Secretary, Social Welfare Council - Member (nya) Chairperson, Nepal Chamber of Commerce - Member (ta) Chairperson, Nepal Red Cross Society - Member (tha) President, Federation of Nepalese Chambers of Commerce and Industry - Member (tha1) Added by Some Nepal Acts Amendment Act, 2082. Expert members pursuant to Section 9 - Members (da) Chief Executive - Member-Secretary 7. Provisions relating to Meetings of the Executive Committee: (1) A meeting of the Executive Committee shall be held at the date, time and place specified by the Chairperson. (2) The Member-Secretary of the Executive Committee shall fix the date, time and place for the meeting of the Executive Committee and send a notice

including the agenda for discussion to all members at least twenty-four hours before the meeting time.

8. Functions, Duties and Powers of the Executive Committee: The functions, duties and powers of the Executive Committee shall be as follows:-

- (a) To prepare national policies and plans relating to disaster management and submit them to the Council,
- (b) To approve and implement or cause to implement integrated and sectoral policies, plans and programs relating to disaster risk reduction, disaster response and disaster recovery, subject to the national policies and plans approved by the Council,
- (c) To approve and implement or cause to implement strategic plans and programs relating to disaster management,
- (d) To determine the roles to be played by public, private, non-governmental and all other bodies and institutions in relation to disaster management, and to cause such institutions or bodies to include disaster management related subjects in their policies, plans and programs,
- (e) To determine the roles and responsibilities of the Ministries, Departments and other bodies of the Government of Nepal in relation to disaster management,
- (f) To develop or cause to develop the institutional capacity of the federal, province, district and local levels in relation to disaster management,
- (g) To cause the inclusion of disaster management related subjects in educational curricula from school level to higher level,
- (h) To formulate and implement or cause to implement contingency plans according to thematic areas for disaster risk reduction,
- (jha) To identify risk-prone areas and carry out or cause to carry out risk and hazard mapping of such areas to mitigate the potential impact of natural disasters,
- (nya) To prepare and implement or cause to implement risk-sensitive development and land-use plans,
- (ta) To conduct or cause to conduct disaster risk assessment of public infrastructure related structures,
- (tha) To relocate or cause to relocate persons and communities residing on riverbanks, riverbeds, sloping land prone to landslides, flood-prone areas, or unsafe areas with potential disaster risk to safer locations,
- (da) To formulate and implement or cause to implement special plans and programs for women, children, senior citizens, Dalits, marginalized classes and communities, and persons with disabilities who are at risk of disaster,
- (dha) To identify communities in high-risk situations and conduct or cause to conduct risk reduction,
- (na) To develop and operate or cause to operate national early warning systems,
- (ta) To formulate and implement or cause to implement a national disaster response framework for disaster response,
- (tha) To make arrangements for providing immediate relief to disaster-affected persons,
- (da) To formulate and implement or cause to implement procedures and standards necessary for the

automatic activation of institutional mechanisms to immediately undertake primary activities including search, rescue and relief as soon as a disaster event occurs,

(dha) To make arrangements for immediate health treatment of disaster-affected persons by providing adequate infrastructure and facilities in public and private hospitals or health institutions for emergency treatment,

(na) To prepare and implement or cause to implement necessary standards relating to the role of mass media during disasters,

(pa) To advise the Government of Nepal on matters of national policy relating to immigration, customs and quarantine to be adopted during disasters,

(pha) To operate or cause to operate programs for the restoration of economic activities, creation of employment opportunities and income generation for livelihood in disaster-affected areas,

(ba) To operate or cause to operate disaster recovery related programs in disaster-affected areas,

(bha) To mobilize or cause to mobilize international, bilateral and multilateral assistance received in the field of disaster management, subject to prevailing law,

(ma) To perform or cause to perform other functions assigned by the Government of Nepal or the Council in relation to disaster management,

(ya) To perform or cause to perform other functions as prescribed in relation to disaster management.

11. Functions, Duties and Powers of the Authority: (1) The functions, duties and powers of the Authority shall be as follows:-

(a) To implement or cause to implement plans, programs and decisions approved by the Council and the Executive Committee,

(b) To function as the central resource body for disaster risk reduction and management,

(c) To conduct or cause to conduct study and research on river control, flood, landslide, earthquake, global warming, climate change, land use and potential causes and mitigation measures of various calamities and disasters,

(d) To provide necessary financial and technical assistance as required to the province and local level for formulating periodic plans relating to disaster management,

(e) To involve or cause to involve non-governmental organizations, private sector and local communities in disaster management related activities and to coordinate and facilitate their work,

(f) To form search and rescue teams and develop capacity at the federal, province and local levels to provide effective search, rescue and relief,

(g) To rescue or cause to rescue persons in areas that may be affected by disaster events as soon as they occur, and to coordinate with concerned bodies to ensure reliable protection of life and property of disaster-affected residents,

(ha) To mobilize or cause to mobilize security bodies, search and rescue teams, flying squads, local communities, Nepal Red Cross Society, Nepal Scouts, volunteers, technical personnel and other concerned

stakeholders for search and rescue of disaster-affected persons,

(jha) To manage or cause to manage national and international search and rescue groups arriving for humanitarian assistance and cash and relief materials received after disaster events,

(nya) To maintain an integrated record of international, bilateral and multilateral assistance received in the field of disaster management,

(ta) To develop and operate a national disaster management information system and collect, analyze, store and transmit information and data relating to disaster management,

(tha) To provide advice and suggestions to various bodies of the Government of Nepal and other institutions on matters relating to disaster risk reduction and management,

(da) To prescribe the subjects and standards for basic orientation training on disaster management to be provided by public entities and commercial establishments to their employees and workers,

(dha) To cause the administrative and security mechanisms at the federal, province and local levels to be kept alert for immediate mobilization in relation to disaster management,

(na) To enhance or cause to enhance public awareness in relation to disaster risk reduction,

(ta) To conduct or cause to conduct study and research on modern and traditional technologies including geology, seismology, hydrology and meteorology, geographic information system, remote sensing system, early warning system, and use or cause to use appropriate technology for disaster risk reduction,

(tha) To operate and manage a national emergency operation center to provide prior information to all concerned about potential disaster events, to immediately collect, analyze and transmit information, and to coordinate and mobilize search, rescue and relief related activities,

(da) To form flying squads for immediate mobilization at the time of disaster,

(dha) To form a volunteer bureau for immediate mobilization for search, rescue and relief operations during disasters,

(na) To mobilize or cause to mobilize local communities and volunteers for the construction of temporary rehabilitation and learning centers for citizens of disaster-affected areas,

(pa) To mobilize or cause to mobilize private and non-governmental organizations, local communities and other stakeholders in a coordinated manner for disaster response,

(pha) To operate emergency warehouses for disasters and manage received relief materials,

(ba) To provide or cause to provide psychosocial counseling services for persons affected by disaster,

(bha) To monitor whether the Ministries, Departments and other bodies of the Government of Nepal have performed the roles and responsibilities determined by the Executive Committee in relation to disaster management and submit a report to the Executive Committee,

(ma) To perform or cause to perform other functions as prescribed in relation to disaster management.

(2) The Authority shall perform disaster management related activities in coordination with the Council, the Executive Committee and the relevant Ministries and other bodies of the Government of Nepal.

Chapter - 5

Provisions relating to Chief Executive and Employees

Amended by Some Nepal Acts Amendment Act, 2075.12. Chief Executive: (1) The Government of Nepal shall appoint a person having a postgraduate degree from a university recognized by the Government of Nepal and at least ten years of experience in the relevant field as the Chief Executive, on the recommendation of the committee referred to in Sub-section (2), to act as the administrative head of the Authority.

(2) The Government of Nepal shall form a committee with the Secretary of the Ministry as the coordinator and two other expert members to recommend the name of a suitable person for the appointment of the Chief Executive. The procedure to be adopted for recommendation for the appointment of the Chief Executive and the meeting procedures shall be as determined by that Committee itself.

(3) The term of office of the Chief Executive shall be five years.

(4) Notwithstanding anything contained in Sub-section (3), if the performance of the Chief Executive is not satisfactory, the Government of Nepal may remove him/her from the post of Chief Executive at any time.

(5) Before removing the Chief Executive from office pursuant to Sub-section (4), a reasonable opportunity shall be given to him/her to submit a defense.

(6) The Chief Executive shall work under the direct control of the Executive Committee and shall be accountable to the Council and the Government of Nepal for his/her performance.

(7) The Chief Executive shall act as the Disaster Response Controller during a disaster.

(8) Provisions relating to the remuneration, facilities, terms of service and functions, duties and powers of the Chief Executive shall be as prescribed. 13. May Requisition Employees: (1) If it is necessary to requisition any employee from the civil service, security body or public entity for special work of the Authority during a disaster, the Authority may send a written request to the concerned institution or body.

(2) Upon receipt of such written request pursuant to Sub-section (1), the concerned institution or body shall depute the employee on secondment to the Authority as requested. Chapter - 6

Amended by Some Nepal Acts Amendment Act, 2075. Provisions relating to Province Disaster Risk Reduction and Management Council and Province Disaster Management Executive Committee

Added by Some Nepal Acts Amendment Act, 2075.13ka.

Province Disaster Risk Reduction and Management Council: (1) There shall be a Province Disaster Risk Reduction and Management Council in each Province, chaired by the Chief Minister, for the purpose of preparing policies and plans relating to disaster management at the province level, providing policy guidance and directives to the Province Disaster Management Executive Committee as required. (2) The members of the Province Disaster Risk Reduction and Management Council constituted pursuant to Sub-section (1), its meetings and decisions, and other related provisions shall be as prescribed in the rules made by the Province Government. 14. Province Disaster Risk Reduction and Management Executive Committee: Amended by Some Nepal Acts Amendment Act, 2075. (1) For the purpose of disaster management in each Province, the Province Government may, by publishing a notification in the Province Gazette, form a Province Disaster Risk Reduction and Management Executive Committee chaired by the Minister holding the

portfolio of internal affairs of the Province. Added by Some Nepal Acts Amendment Act, 2075. (1a) The Province Disaster Risk Reduction and Management Executive Committee shall consist of a maximum of fifteen members in addition to the Chairperson. (2) Amended by Some Nepal Acts Amendment Act, 2075.

The functions, duties and powers of the Province Disaster Risk Reduction and Management Executive Committee shall be as follows:- (a) To formulate and implement or cause to implement medium-term and short-term policies, plans and programs relating to disaster management at the province level, subject to the national policies and plans approved by the Council, (b) To facilitate and coordinate as necessary to bring effectiveness in the functioning of the concerned bodies and the Local Disaster Risk Reduction and Management Committee for disaster preparedness, (c) To coordinate and collaborate with the federal, province and local level and other stakeholders to bring effectiveness in search, rescue and relief distribution work, (d) To formulate and implement or cause to implement standards for the management of relief materials, (e) To construct or cause to construct temporary shelters and other temporary structures for disaster-affected persons in emergency situations, (f) To arrange essential items such as drinking water, food, clothing and medical treatment in disaster-affected areas, (g) To mobilize or cause to mobilize volunteers in disaster-affected areas, (h) To keep records of and take control of and use or cause to use government, non-governmental and private vehicles, machinery, equipment, supplies, food items, etc. at the local level in accordance with law, if a disaster crisis area has been declared by the Government of Nepal, (i) To cause the demolition of unsafe buildings in the area declared as a disaster crisis area by the Government of Nepal and assist the local level in such work, (ja) To relocate or cause to relocate disaster-affected persons from unsafe places to safe locations, (jha) To distribute or cause to distribute and utilize relief materials or assistance received from national or international non-governmental organizations in a coordinated manner, subject to prevailing law, (nya) To develop and operate or cause to operate a province level disaster management information system and early warning system, (ta) To collect, analyze, store and transmit or cause to collect, analyze, store and transmit information and data relating to disaster management at the province level, (tha) To send details of search, rescue and relief operations conducted during disasters to the Authority, (da) To monitor and evaluate as necessary the activities carried out by public entities and commercial establishments under this Act in relation to disaster management and give necessary directives to the concerned institutions and establishments, (dha) To perform necessary functions regarding market price, artificial scarcity and quality control and regulation during disasters, (na) To perform or cause to perform other necessary functions relating to disaster response, recovery, rehabilitation and reconstruction and relocation at the province level, (pa) To recommend to the Government of Nepal if a situation arises requiring the declaration of a crisis area in a disaster-affected area, (pha) Amended by Some Nepal Acts Amendment Act, 2075.

Chapter - 7

Provisions relating to District and Local Disaster Risk Reduction and Management Committee

16. District Disaster Risk Reduction and Management Committee: (1) There shall be a District Disaster Risk Reduction and Management Committee as follows for disaster management related activities at the district level:-

- (a) Chief District Officer - Chairperson
- (b) Representative of District Coordination Committee - Member
- (c) Chairs and Heads of Local Levels within the district - Member

- (d) Chief of the district level office looking after health related matters - Member
- (e) Chiefs of security bodies stationed in the district - Member
- (f) Chiefs of offices stationed in the district related to infrastructure and social development - Member
- (g) District-level chief or representative of nationally recognized political parties - Member
- (h) District-level Chief of Nepal Red Cross Society - Member
- (jha) District-level Chief of NGO Federation - Member
- (nya) District-level Chief of Nepal Press Union - Member
- (ta) District-level Chief of Federation of Chambers of Commerce and Industry - Member
- (tha) Officer designated by the Chief District Officer - Member-Secretary

(2) The functions, duties and powers of the District Disaster Risk Reduction and Management Committee shall be as follows:-

- (a) To assist or cause to assist in implementing policies, plans and programs approved by the Council, Executive Committee and Province Committee,
- (b) To prepare and implement or cause to implement the district disaster response plan,
- (c) To operate the emergency operation center at the district level,
- (d) To carry out search and rescue in disaster-affected areas by making optimum use and flow of available resources,
- (e) To distribute or cause to distribute relief according to the standards approved by the Government of Nepal and to cause government and non-government offices in the district to distribute relief accordingly,
- (f) To control transportation and movement of people in disaster-affected areas as necessary,
- (g) To remove or cause to remove waste and other unnecessary items created due to disaster,
- (h) To manage or cause to manage the corpses of deceased persons and animal carcasses during disasters,
- (i) To arrange shelters for disaster-affected persons in emergency situations,
- (ja) To cause security bodies to remain alert for immediate mobilization during disasters,
- (jha) To arrange essential items such as drinking water, food, clothing and medical treatment in disaster-affected areas,
- (nya) To cause the construction of temporary physical structures immediately required in disaster-affected areas,
- (ta) To take control of and use or cause to use government, non-governmental and private means of transport, machinery, supplies, food items, etc. available at the local level in accordance with law during disasters,
- (tha) To cause the demolition of unsafe buildings in disaster-risk or disaster-affected areas,
- (da) To relocate disaster-affected persons from unsafe buildings and places to safe locations,
- (dha) To mobilize volunteers, experts and consultants in disaster-affected areas and supervise them,
- (na) To coordinate rescue, relief and assistance activities carried out by national or international non-governmental organizations,

(pa) To coordinate with the local level and other concerned bodies for search, rescue, relief and recovery related work during disasters,

(pha) To carry out necessary activities for the mitigation of secondary disasters that may occur after a disaster,

(ba) To recommend to the Government of Nepal if a situation arises requiring the declaration of a crisis area in a disaster-affected area,

(bha) To disseminate disaster related information,

(ma) To send progress reports of rescue and relief programs to the Authority,

(ya) To perform or cause to perform other functions as prescribed in relation to disaster management.

(3) Provisions relating to the secretariat, meeting procedures and other arrangements of the District Disaster Risk Reduction and Management Committee shall be as prescribed.

17. Local Disaster Risk Reduction and Management Committee: Amended by Some Nepal Acts Amendment Act, 2075. (1) Each Local Level shall form a Local Disaster Risk Reduction and Management Committee comprising a maximum of fifteen members, chaired by the Chairperson of the Rural Municipality or the Mayor of the Municipality.

(2) The functions, duties and powers of the Local Disaster Risk Reduction and Management Committee shall be as follows:-

(a) To formulate and implement a local disaster management plan in conformity with the national policies and plans approved by the Council and the integrated and sectoral policies, plans and programs approved by the Executive Committee and the Province Disaster Management Executive Committee,

(b) To cause the local level to allocate budget for disaster management,

(c) To perform or cause to perform disaster management related activities with the coordination and involvement of government, private and non-governmental organizations, local volunteers, social mobilizers and all other concerned parties,

(d) To make arrangements for providing training on disaster management to the office bearers, employees, volunteers, social mobilizers and community of the local level,

(e) To ensure compliance with building codes and other approved directives or standards while constructing physical structures,

(f) To form a disaster preparedness and response committee at the ward or community level to raise awareness among the local community about disasters, formulate disaster-related plans and programs, and be mobilized for response as soon as a disaster event occurs,

(g) To conduct or cause to conduct emergency mock drills for disaster response,

(h) To arrange rescue and relief in disaster-affected areas,

(i) To monitor whether public entities and commercial establishments have acted in accordance with this Act regarding disaster management,

(ja) To develop and operate or cause to operate a disaster management information system and early

warning system at the local level,

(jha) To establish and operate an emergency operation center at the local level,

(nya) To cause to keep updated accurate statistics of documents lost, damaged or destroyed in a disaster,

(ta) To identify, determine the level and distribute identity cards to disaster-affected households,

(tha) To cause fire engines and other equipment to be kept in a state of readiness for use during disasters,

(da) To perform or cause to perform other disaster management related functions in accordance with the decisions of the Executive Committee, the Province Disaster Management Executive Committee and the District Disaster Risk Reduction and Management Committee,

(dha) To perform or cause to perform other functions as prescribed in relation to disaster management.

(3) Provisions relating to the secretariat, meeting procedures and other arrangements of the Local Disaster Risk Reduction and Management Committee shall be as prescribed.

Chapter - 8

Functions, Duties and Powers of Security Bodies and Other Bodies

18. Mobilization and Functions, Duties and Powers of Security Bodies: (1) Security bodies shall be mobilized as necessary in disaster management work.

(2) The Government of Nepal may mobilize the Nepali Army for search, rescue and relief operations during a disaster.

(3) Security bodies shall, under the direction and supervision of the Executive Committee, the Authority, the Chairperson of the Province Disaster Risk Reduction and Management Executive Committee Amended by Some Nepal Acts Amendment Act, 2075. and the Chairperson of the District Disaster Risk Reduction and Management Committee, perform the following functions in relation to disaster management:-

(a) To provide early warning regarding potential disasters and alert the community for disaster risk reduction,

(b) To mobilize immediately upon receiving information of disaster events in any place and inform the concerned officer or body,

(c) To effectively complete emergency search, rescue and relief distribution works,

(d) To conduct search and rescue training and public awareness programs on disaster management related subjects.

(4) Security bodies shall have the right to enter any place and use the means and resources of any person or institution available, in accordance with the order of the Chief District Officer, for disaster response.

(5) Security bodies may request necessary materials from the Province Disaster Risk Reduction and Management Executive Committee and the Local Disaster Risk Reduction and Management Committee for search and rescue operations during a disaster. 19. Functions, Duties and Powers of Fire Service and Other Service Providers: (1) If a disaster occurs in any place, the fire service and other service providers shall immediately inform the concerned Local Disaster Risk Reduction and Management Committee.

(2) Fire service and other service providers shall comply with the directives given by the District Disaster Risk

Reduction and Management Committee and the Local Disaster Risk Reduction and Management Committee to provide emergency search, rescue and relief.

(3) While performing emergency work, the fire service provider body shall have the right to enter any place and use the means and resources of any person or institution, in accordance with the order of the Local Disaster Risk Reduction and Management Committee. 20.

Obligations of Public Entities and Commercial Establishments: (1) The obligations of public entities and commercial establishments in relation to disaster management shall be as follows:- (a) To make disaster safety tools, equipment, materials, emergency exits and other arrangements as prescribed in their buildings, industries, offices or commercial centers to prevent disaster events, (b) To provide necessary assistance to the Executive Committee, other committees related to disaster management and the Authority in all activities including data collection, damage assessment, relief, rehabilitation and reconstruction, (c) To provide basic orientation training to their employees and workers as prescribed by the Authority regarding disaster management, (d) To keep resources used in disaster management work in a state of readiness, (e) To make available their buildings and other structures for emergency purposes if required, in accordance with the orders of the Government of Nepal, the Authority, the Province Government, the Local Level and the Chief District Officer, (f) To assist in rescue and relief distribution work under the supervision of the concerned officer, (g) To arrange and keep in readiness a disaster risk reduction mechanism, (h) To take measures to properly manage waste and pollution and mitigate the negative impact thereof on the environment and public life, (i) To immediately inform the nearest security body and local emergency operation center if a disaster event occurs. (2) Public entities and commercial establishments shall, subject to the disaster management plans of the Government of Nepal, Province Government and Local Level, formulate and mandatorily implement a disaster management plan. 21. Obligation to Assist in Disaster Management: Government offices, non-governmental organizations, local associations, communities, volunteers, civil society, private sector and individuals shall 33.

Government of Nepal may issue orders: (1) The Government of Nepal may, in a disaster crisis area declared pursuant to Section 32, issue an order to any person, entity or authority to do any or all of the following works as necessary: (a) to close government or non-government offices, educational institutions or other institutions in such area for a certain period as necessary, (b) to prohibit any act or activity that may adversely affect rescue operations in such area, (c) to depute employees of government or non-government offices, educational institutions or other institutions on duty, (d) to temporarily acquire, for the purpose of disaster rescue operations, if necessary, the movable and immovable property of non-government offices, educational institutions, other institutions or persons, by keeping records, for a specified period, (e) to utilize and mobilize government resources and means, (f) to take control of and use vehicles of non-government offices, educational institutions, other institutions or persons within the concerned district for a certain period by keeping records, (g) to take control of food grains, clothing, medicine, construction materials and other goods of non-government offices, educational institutions, other institutions or persons within the concerned district by keeping records, and distribute them to disaster-affected persons, (h) to adopt necessary measures to protect land, houses, factories, temples and religious sites and other such important objects or places located in such area from destruction, (i) to form assistance teams and send them to the disaster crisis area, (j) to impose restrictions on transportation and movement of people in the disaster-affected area, (k) to make arrangements for other necessary protective measures for the protection of life and property of the general public, (l) to carry out other works deemed necessary for disaster management. (2) It shall be the duty of the concerned person, entity or authority to comply with the order issued pursuant to Sub-section (1). 34. Power

to enter any place: The officer of the concerned body involved in search, rescue and relief distribution operations during disaster management may enter any place, building, etc. within a disaster-prone area or disaster crisis area by giving notice and as necessary. 35. Approval of Government of Nepal required: If a foreign citizen or institution has to enter any area affected by a disaster, approval of the Government of Nepal shall be required. 36.

May receive international humanitarian and other assistance: (1) The Government of Nepal may receive international humanitarian and other assistance if it deems that international assistance is necessary to immediately cope with the disaster situation in the country, as it cannot be managed from internal resources and means. (2) The Government of Nepal may declare that assistance pursuant to Sub-section (1) is no longer necessary, if the situation arising from the disaster is controlled and further international assistance is not required. 37. Immediate procurement and construction may be done: If, due to special circumstances, it is necessary to immediately procure relief materials or carry out construction work to provide search, rescue and relief in a disaster-affected area and to prevent further damage from the ongoing disaster, procurement or construction work may be carried out in accordance with the provisions relating to procurement in special circumstances contained in the prevailing law on public procurement. 38. Payment to be made: (1) If property of a non-government office, educational institution, other institution or person is temporarily acquired or a vehicle is used pursuant to Clause (d) or (f) of Sub-section (1) of Section 33, the official, institution or disaster management committee designated by the Authority shall pay to the concerned office, institution or person an amount according to the prevailing rate as rent for the property acquired as per the records or for the vehicle used. Provided, however, that if, while acquiring immovable property, land with standing crops or land to be cultivated is also included, necessary compensation shall also be given for the crops damaged or to be damaged. (2) If food grains, clothing, medicine, construction materials and other goods are obtained from a non-government office, educational institution, other institution or person pursuant to Clause (g) of Sub-section (1) of Section 33, the official, institution or disaster management committee designated by the Authority shall give to the concerned office, institution or person an amount equal to the value of such goods as per the prevailing rate. 39.

Provision relating to minimum standards of relief: (1) The Government of Nepal shall, upon the recommendation of the Executive Committee, formulate and implement minimum standards of relief to be provided to disaster-affected persons. (2) The minimum standards of relief pursuant to Sub-section (1) shall, in addition to other matters, include the following matters: (a) relating to shelter, food, drinking water, health and sanitation to be provided when placing disaster-affected persons in temporary shelters, (b) relating to minimum relief to be provided to the families of those who die due to a disaster and to persons suffering property loss, (c) relating to the welfare of women, children, senior citizens, disabled and persons with disabilities, (d) relating to the livelihood of victims through self-employment and employment management in addition to minimum relief, (e) relating to distribution of relief provided by non-governmental or private sources, (f) relating to distribution of relief under a single-door system, (g) other appropriate matters relating to relief. (3) The minimum standards of relief pursuant to Sub-section (1) shall be complied with by all bodies, persons or institutions providing relief to disaster-affected persons. 40. Relating to documents lost or destroyed in a disaster: Provision relating to certification and provision of copies of important documents that are partially or fully damaged, having been lost and not traceable due to a disaster, shall be as prescribed. 41. Remission: The Government of Nepal may grant remission, in accordance with the prevailing law, of materials and resources expended by government offices or institutions for disaster management works. 42. May issue directives: The Executive Committee may, subject to this Act, issue necessary directives to any person or body for disaster management, and it shall be the duty of the concerned person or body to comply

with such directives. 43. May form sub-committees: (1) The Executive Committee, Provincial Disaster Management Executive Committee, District Disaster Risk Reduction and Management Committee and Local Disaster Risk Reduction and Management Committee may form sub-committees as necessary. (2) The functions, duties, powers and procedures of a sub-committee formed pursuant to Sub-section (1) shall be as specified at the time of forming the sub-committee. 44. May award prizes: The Authority shall make arrangements to provide honor and prizes as prescribed to outstanding persons or institutions making special contributions in relation to disaster management, by way of encouragement. 45.

Annual report: (1) The Local Disaster Risk Reduction and Management Committee shall prepare an annual report including details of the work done in each fiscal year and submit it to the District Disaster Risk Reduction and Management Committee and Provincial Disaster Management Executive Committee. (2) The District Disaster Risk Reduction and Management Committee shall prepare an annual report including details of the work done in each fiscal year and submit it to the Provincial Disaster Management Executive Committee. (3) The Provincial Disaster Management Executive Committee shall prepare an annual report including details of the work done in each fiscal year and submit it to the Council through the Authority. (4) The Authority shall publish the annual report pursuant to Sub-section (1) publicly. 46. Delegation of authority: (1) The Executive Committee may, as necessary, delegate some of the powers vested in it under this Act and the rules made under this Act to the Authority and the Chief Executive. (2) The Provincial Disaster Management Executive Committee, District Disaster Risk Reduction and Management Committee and Local Disaster Risk Reduction and Management Committee may, as necessary, delegate some of the powers vested in them under this Act and the rules made under this Act to the Chairperson of the concerned committee and other officer employees. 47. Power to make rules: The Government of Nepal may make necessary rules for implementing this Act. 47A. Provincial Government may make rules: (1) The Provincial Government may make necessary rules to make disaster management systematic and effective in accordance with this Act. (2) Without prejudice to the generality of the power conferred by Sub-section (1), the Provincial Government may make rules on the following matters: (a) relating to the formation, functions, duties and powers of the Provincial Disaster Management Executive Committee, (b) relating to the amount to be kept in the Provincial Disaster Management Fund and its operation and management, (c) relating to any other matter which may be provided for by rules under this Act. (3) Rules made by the Provincial Government under this Act shall come into effect only after publication in the Provincial Gazette. 48.